

**CV-25-012120 STANISLAUS COUNCIL OF GOVERNMENTS vs BRAY,
RADUS L – Defendant’s Motion to Increase Probable Compensation
Deposit - GRANTED in part to \$189.620.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The parties are to appear for the Case Status Review. The Court intends to set a trial. The Court cautions Defendant against including settlement negotiations in its filings and as discussed at the last hearing, the Court does not consider them. The Court considered, but rejected, striking the filing entirely due to this violation. Plaintiff’s Evidentiary objections: OVERRULED. SUSTAINED. Evidence Code section 1414 is not met given the section 1152 considerations so foundation is insufficient. If we reached relevance, that objection would be overruled. 3-4: SUSTAINED (Evidence Code § 1152). Defendant’s Request for Judicial Notice is GRANTED. (Evidence Code § 453). The Court has broad discretion to consider a motion to redetermine probable compensation including one based on grounds of erroneous factual inputs. (Code Civ. Proc., § 1255.030). Defendant cites to Zhou v. Unsource Worldwide (2007) 157 Cal.App.4th 1471, 1478, and Moving Picture Etc. Union v. Glasgow Theaters, Inc. (1970) 6 Cal.App.3d 395, 405) for the proposition that the statements made in the settlement letter are admissible. But in each of those cases, the statement’s primary purpose was not found to be settlement. In this case, the statements are made in furtherance of settlement. They are not. This reaches the competing inferences of the tree counts by the appraisers. StanCOG’s appraiser Steve Parent valued the improvements to the property at \$41,568 based on 20 large trees, 3 medium trees, and various other items. Defendant counted the trees and found 10 additional large trees. These site improvements were directly calculated into the value. Defendant’s tree counter located 30 large trees, 111 medium trees, and 143 small trees on the property. Given the nature of the calculation and report by Parent, it appears that some valuation of the additional trees is merited, and StanCOG does not rebut the evidence presented but rather provides what-if criticisms and asserts this is an improper method. But this was the method used by Parent. Parent did not assign value to the small trees on the property and it is unclear that is an oversight, so no weight is assigned to those. The 10 additional large trees appear to support an additional \$17,620 in the deposit. The evidence of the medium trees might, with more information, support the requested \$97,776 amount, but the Court has no information on scale issues. The Court reduces the amount for the medium trees to \$50,000. The total adjusted value is \$189,620 as likely probable compensation. I expressly note that this does not bind me if I am the factfinder assuming more or different evidence is presented at a final hearing. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22: ***There are no tentative rulings in Department 22*** The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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Plaintiff’s Evidentiary objections:

OVERRULED.

SUSTAINED. Evidence Code section 1414 is not met given the section 1152 considerations so foundation is insufficient. If we reached relevance, that objection would be overruled.

3-4: SUSTAINED (Evidence Code § 1152).

Defendant's Request for Judicial Notice is GRANTED. (Evidence Code § 453).

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But in each of those cases, the statement's primary purpose was not found to be settlement. In this case, the statements are made in furtherance of settlement. They are not.

This reaches the competing inferences of the tree counts by the appraisers. StanCOG's appraiser Steve Parent valued the improvements to the property at \$41,568 based on 20 large trees, 3 medium trees, and various other items. Defendant counted the trees and found 10 additional large trees. These site improvements were directly calculated into the value.

Defendant's tree counter located 30 large trees, 111 medium trees, and 143 small trees on the property. Given the nature of the calculation and report by Parent, it appears that some valuation of the additional trees is merited, and StanCOG does not rebut the evidence presented but rather provides what-if criticisms and asserts this is an improper method.

But this was the method used by Parent.

Parent did not assign value to the small trees on the property and it is unclear that is an oversight, so no weight is assigned to those. The 10 additional large trees appear to support an additional \$17,620 in the deposit. The evidence of the medium trees might, with more information, support the requested \$97,776 amount, but the Court has no information on scale issues. The Court reduces the amount for the medium trees to \$50,000.

The total adjusted value is \$189,620 as likely probable compensation. I expressly note that this does not bind me if I am the factfinder assuming more or different evidence is presented at a final hearing.

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